IN THE BUSINESS AND PROPERTY COURTS IN LEEDS

TECHNOLOGY AND CONSTRUCTION COURT (KBD)

Claim No. BL-2025-LDS-000241

BETWEEN:

MARLDALE AGGREGATES LIMITED

Claimant

- and -

CRAYFORD PLANT ENGINEERING LIMITED

Defendant

PARTICULARS OF CLAIM

The Parties

1. The Claimant ("Marldale") is a company that produces construction aggregates and operates Hartle Edge quarry near Skipton, North Yorkshire.

2. The Defendant ("Crayford") is a designer, manufacturer and supplier of mobile crushing and screening plant.

The Agreement

3. By a written agreement dated 14 June 2024 ("the Agreement") Crayford agreed to design, supply, deliver and commission one CPE C-900 mobile jaw-crushing and screening plant ("the Plant") for the price of £1,185,000 plus VAT.

4. It was an express term of the Agreement (clause 7.1) that the Plant would achieve a sustained throughput of not less than 320 tonnes per hour of 0–40mm crushed aggregate when fed with limestone of the characteristics set out in Schedule 2 ("the Throughput Warranty").

5. It was a further express term (clause 7.3) that the Plant would maintain operational availability of not less than 95% over any rolling three-month period ("the Availability Warranty").

6. It was a further express term (clause 8.1) that for 24 months from commissioning Crayford would remedy at its own cost any defect in materials, design or workmanship ("the Warranty Period").

7. It was an implied term, pursuant to sections 14(2) and 14(3) of the Sale of Goods Act 1979, that the Plant would be of satisfactory quality and reasonably fit for the purpose of producing crushed limestone aggregate at the Claimant's quarry, that purpose having been made known to the Defendant.

8. The Plant was delivered and commissioned at Hartle Edge quarry on 19 August 2024.

Breach

9. In breach of the Throughput Warranty the Plant has never achieved a sustained throughput exceeding approximately 210 tonnes per hour (a shortfall of some 34% against the warranted figure), as recorded by the Claimant's weighbridge tickets and the Plant's own PLC tonnage logs, both of which are in agreement.

10. In breach of the Availability Warranty the Plant achieved availability of approximately 71% over the period September 2024 to January 2025.

11. In breach of clause 8.1 and of the implied terms the Plant suffered repeated mechanical failures, namely: (a) failure of the jaw-crusher toggle seat and eccentric-shaft bearings on 10 September, 7 October and 22 November 2024; (b) repeated loss of pressure in the primary hydraulic circuit; and (c) shearing of the secondary screen drive on 14 January 2025. Crayford attended on seven occasions but on each occasion merely replaced the failed components on a like-for-like basis and failed to remedy the defects.

Loss and Damage

12. By reason of the said breaches the Claimant has suffered loss and damage. Particulars are set out in the Schedule of Loss served herewith. In summary the Claimant claims: (a) the cost of remedial and replacement works of £612,000; (b) loss of production and profit of £648,500; and (c) wasted overheads and abortive haulage of £104,200, a total of £1,364,700.

Interest

13. The Claimant claims interest on such sums as may be found due pursuant to section 35A of the Senior Courts Act 1981 at such rate and for such period as the Court thinks fit.

AND the Claimant claims:

(1) Damages in the sum of £1,364,700;

(2) Interest pursuant to section 35A of the Senior Courts Act 1981;

(3) Costs.

HARRIET STANFORD

Eldon Chambers

STATEMENT OF TRUTH

The Claimant believes that the facts stated in these Particulars of Claim are true. I am duly authorised by the Claimant to sign this statement.

Signed: ..... Owen Marsden, Managing Director, Marldale Aggregates Limited

Dated: 9 April 2025